

**SFIO Vs Adarsh Buildtech. And others COMA
No.5/2019
CNR No. : HRGR-01-007022/2019**

Since there are 187 different accused, the proceedings of the case with respect to each of the accused, including the bail applications and other applications filed by them, is as under:

Present : Sh. Lokender Singh Raghav, Senior Standing Counsel, alongwith Sh. Satish Aggarwal, SFIO assisted by Sh. SS Gulia, Public Prosecutor for the state.

**Accused Companies, A-1 to A-70
through Accused No. 123 Rohit Modi**

Present : Accused Rohit Modi in custody, Authorized Representative of the above companies.

As mentioned in the earlier orders, all the above referred accused companies are being represented by accused, Rohit Modi, who is already in custody in this case in personal capacity also and at present lodged in Central Jail, Jaipur (Rajasthan) in another case.

Today accused Rohit Modi produced before me in custody by the Central Jail, Jaipur Jail Authorities. He be kept in judicial custody and be produced on 22.11.2019 in the court through Video conference.

**Accused Companies, A-71 to A-78
(through accused No. A-135, Sidharth Chauhan)**

The anticipatory bail application filed by accused A-135, Sidharth Chauhan in his personal capacity as well as being Director and authorized representative of accused companies A-71 to A-78, has been dismissed vide detailed order dated 1.8.2019 by my Learned Predecessor. But despite this, he has not appeared or surrendered. No other authorized person on behalf of above accused-companies has appeared despite notice to the above accused. As such, these companies shall be represented by above accused.

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However, in order to procure the service of accused, named-above, in his personal capacity, warrant of arrest issued against him has not been received back. As such, his fresh warrant of arrest be issued for 22.11.2019 to be executed by DCP Hq., Guurgram through a senior police officer, who will appear on the date fixed to explain, if it remained unexecuted.

Accused Companies promoted by accused, Vivek Harivyasi:

A-79 : A3G Infra Private Limited
A-90 : Cynosure Real Estate Pvt. Ltd.
A-91 : EOS Developers Pvt. Ltd.
A-92 : Adler Infra Ventures Pvt. Ltd.
A-93 : Headstrong International Exports Pvt. Ltd.
A-115: Vivek Harivyasi in custody.

Present: Accused No. A-115 Vivek Harivyasi, in custody with Counsel.

Today accused **Vivek Harivyasi** produced before me in custody by the Bhondsi Jail, Gurugram. He be kept in judicial custody and be produced on 22.11.2019 in the court through Video conference.

Accused Company

A-80 :Prince Realbuild Pvt. Ltd.,

Present: Naveen Kumar, Authorised representative for accused No. A-80

Bailable warrant of the above accused-company through its AR not received back executed or unexecuted. Fresh bailable warrants be issued for 22.11.19.

Accused Companies,

A-81 : HNS Infratech Pvt. Ltd.
A-82 : HNS Projects Pvt. Ltd.

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(through Accused A-140, Surender Singh)

**Present : Accused A-140, Surender Singh in custody
alongwith Sh. Anuj Lohia, Advocate.**

Today accused Anuj Lohia produced before me in custody by the Bhondsi Jail, Gurugram. He be kept in judicial custody and be produced on 22.11.2019 in the court through Video conference.

**Accused-Company,
A-83 : Sear Built Pvt. Ltd.**

Present : None

Bailable warrant of above said accused company was received back on previous date of hearing unexecuted with the report that address is incomplete. Today, Senior Standing Counsel appearing for SFIO was impressed upon to file complete address of accused no. A-83 on or before 22.11.2019. Fresh bailable warrant be issued for the date fixed, 22.11.19 on filling of complete address by SFIO.

**Accused-Partnership Firm, A-84, Abhay Kumar and Associates
(through Accused Abhay K. Shah, A-127, its partner)**

Present : Sh. Joydip Bhattacharya, Advocate, for accused.

Warrant of arrest issued for today not received back executed or unexecuted.

At this stage, an application under section 317 Cr.P.C., on behalf of accused no. 127 seeking exemption from personal appearance moved on the ground that applicant/accused has approached Hon'ble High Court, Chandigarh to seek remedy available to him and his matter has now been listed for 4.11.2019. Request was strongly opposed by complainant

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side. Heard. Record perused. It is an admitted fact that no interim protection has been granted by the Hon'ble High Court. In the facts and circumstances of the case, allowing the application seeking exemption on this ground would tantamount to do something which has not been done by the Hon'ble High Court. This court refrains from this misadventure. So, request is declined. Execution of warrant of arrest of accused no. 127, issued in pursuance of order dated 3.10.2019, is hereby extended upto 22.11.2019.

**Accused Company, A-85 : Axtron Tex Chem(I) Pvt. Ltd.
(Through accused No. A-130, Jainam Rathod).**

**Present : Accused No.A-130, Jainam Rathod in custody with
Shri Salim Malik Advocate along with Gulshan Sharma
Local Advocate.**

Accused No. A-130, Jainam Rathod has already surrendered and been arrested. His regular bail application has also been dismissed. As such, his presence is marked on behalf of above accused company, A-85, as well as in his individual capacity.

Today accused **Jainam Rathod** produced before me in custody by the Bhondsi Jail, Gurugram. He be kept in judicial custody and be produced on 22.11.2019 in the court through Video conference.

Accused companies :

A-86 : Laxmikripa Buildcon Pvt. Ltd.

A-87 : Riddhi Siddhi Infraprojects Pvt. Ltd. (A/bail application pending)

A-88 : Riddhi Siddhi Infratech Pvt. Ltd.

**Present: Shri Jai Singh Chauhan, AR of above companies
alongwith Shri Harash Kaushik Advocate and Sh.
Kuldeep Singh Local Advocate assisted by Sh. Abhishek
Sharma, Advocate.**

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All the above accused companies are duly represented by Shri Jai Singh Chauhan, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 022.11.2019 for further proceedings.

Accused-Partnership Firm, A-89: SL Bohra & Associate
(through Sudhir Mehta, Accused No. A-170 and Raj Kumar Bohra, accused A-171, its partners)

Present: Shri Ankur Sood Advocate along with Shri Pankaj Motsara Local Advocate for the all the above accused.

An application for anticipatory bail on behalf of accused-firm, A-89, has been filed by the applicant-accused, No. A-170 and A-171 today, which has been adjourned for 22.11.2019 for reply and arguments. The relief granted to said accused by my learned Predecessor vide order dated 4.9.2019 shall continue till decision of Anticipatory Bail application.

Accused Companies No.:

A-94: Aarti Marketing Pvt. Ltd.

A-95: Caranation Trading Pvt. Ltd.

A-96: Cyan Financial Solutions Pvt. Ltd.

A-97: Lever Finvest Pvt. Ltd.

Present: Rahul S/o Mangal Sain on bail (Being Director and AR of above companies)
S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

All the above accused companies are duly represented by Shri Rahul son of Sh. Mangal Sain, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 022.11.19 for further proceedings.

Accused company No. A-98 : Rolex Exports Pvt. Ltd.
(through its AR)

Present: Naresh Kumar S/o Har Prasad on bail (Being Director and AR above company)

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S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

The above accused company is duly represented by its AR, Naresh Kumar, who has already appeared as per section 305. As such he is directed to appear on date fixed 22.11.19 for further proceedings.

Accused-companies : A-99 : Dinkar Commercials Pvt. Ltd. and A-100 : Amarendra Financial Pvt. Ltd. Along with and Accused No. A-176 Raj Kumar Modi, its director

Present: Accused already absent.

Warrant of arrest was issued for today but it was not received back either executed or unexecuted. Fresh **warrant of arrest** be issued against the accused for 22.11.19. Notice under Section 446 Cr.P.C. was also sent to the surety as well as identifier. Sh. Rajesh Ranjan, Advocate, being identifier of Surety and alleged that he has nothing to do with this aspect as he has simply signed the bail bonds. However, since he had identified the surety, he assured that he will get the notice under Section 446 Cr.P.C. served on the surety by assisting the executing official. Accordingly fresh notice under Section 446 Cr.P.C. be issued against the surety Smt. Rekha Modi and learned counsel will assist the executing official to trace and serve the notice upon the surety.

Accused-companies:

A-101: Alba Polymers Ltd.

A-102: Channel Nine Entertainment Ltd.

A-103: Funny Software Ltd.

A-104: Gold Line International Finvest Ltd.

A-105 : Inceptum Enterprises Limited

A-106 : Kanak Krishi Implements Ltd.

A-108: Porsche Capital Market Ltd.

A-109 : Sagitarius Advertising Ltd.

A-110: Satkar Finlease Ltd.

A-111 : Surya Marketing Ltd.

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A-112 : Vishal Digital Studio Color Lab Pvt. Ltd.

Present: Sh. Abishek, AR of A-101, along with S/Shri Kaushal Kumar and Ranjan Kumar, Advocates.

Sh. Deepak AR of A-102 along with Shri Surender Kr. Advocate.

Sh. Ram Naresh AR of A-103 along with Ms. Anita Shit Advocate.

Sh. Pawan Sharma AR of A-104, along with Shri Vichitra Sharma Advocate.

Sh. Annop, AR of A-105 along with Sandeep Joon, Advocate.

Sh. Niraj Kumar, AR of A-106 along with Nitesh Bhardwaj, Advocate.

Sh. Ranjan Kumar, Advocate for Jishan, AR of A-108

Sh. Vikas Paul, AR of A-109 along with Sachin Bali, Advocate.

Sh. Raju Yadav, AR of A-110 along with Rajesh Kumar, Advocate.

Sh. Ritik Sharma, AR of A-111 along with Sh. Varun Chugh, Advocate.

Sh Devender Kumar on bail (Being Director and AR of A-112 company) along with S/Sh. Rohit Arora and Anubhav Almadi, Advocates.

The ARs of all the above accused companies as named above are present. Their presence is accordingly marked on behalf of the accused companies referred above. And they all are directed to appear on date fixed, 22.11.2019 for further proceedings.

A-107 : Padmawati Art Creation Pvt. Ltd.

Present: None

Bailable warrant of above mentioned accused company, A-107 not received back executed or unexecuted. Fresh bailable warrant be issued for 22.11.2019.

Accused who are in custody in Jaipur Jail.

A-113 : Mukesh Modi.

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A-114 : Rahul Virender Modi.
A-120 : Vaibhav Lodha.
A-122 : Virender Modi
A-123 : Rohit Modi.
A-125 : Rajeshwar Singh
A-126 : Bharat Modi
A-131 : Ishwar Singh Sindal
A-134 : Vivek Purohit
A-142 : Bharat Dass Vaishnav

Today accused named above produced before me in custody by the Central Jail, Jaipur. They be kept in judicial custody and be produced on 22.11.2019 in the court through Video conference.

A-117 : Priyanka Modi in custody

Present: Sh. Prashant Yadav, Advocate for the accused

Today accused named above produced before me in custody by the Central Jail, Jaipur. She be kept in judicial custody and be produced on 22.11.2019 in the court through Video conference.

A-167 : Rajeev Verma
A-168 : Sushil Maloo
A-169 : Rajendra Singh Bhandari
(Exempted from personal appearance till further orders)

**Present : All the above accused on bail represented through
Shri Mohan Chaudhary, Advocate**

All these accused persons have already surrendered and vide order dated 13.8.2019 their bail application was allowed and later on 20.8.2019 they furnished bail bonds and moved an application under Section 317 Cr.P.C. for seeking permanent exemption of personal appearance which was allowed by my Learned Predecessor, vide order dated 4.9.2019 by observing that personal appearance of the above three accused persons will remain exempted subject to further orders of this

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court and subject to the condition that their Advocate will appear on each and every date of hearing to record the proceedings and then they will appear as and when required.

Today Sh. Mohan Chaudhary, Adv. put in appearance on behalf of said accused persons.

Accused who are absent but moved bail applications under section 438 Cr.P.C.

A-118 : Jinendra Vyas (Anticipatory bail application dismissed on 24.9.2019 by my learned Predecessor)

A-127 : Abhay K. Shah (Anticipatory bail application dismissed on 23.9.2019 by my learned Predecessor)

A-137 : Shinder Pal Singh (Anticipatory bail application dismissed on 13.9.2019 by my learned Predecessor)

A-138 : Girbir Singh Sandhu (Anticipatory bail application dismissed on 13.9.2019 by my learned Predecessor)

A-155 : Mahender Singh Tak

A-163 : Megha Chauhan

A-164 : Indu Tak

A-165 : Shyam Bihari Gupta

A-166 : Ravi Tak

A-170 : Sudhir Mehta

A-171 : Raj Kumar Bohra

A-172 : Saurabh Tak

A-178 : Mahesh Dutt Sharma

A-187 : Mahesh Kumar Tak

(Anticipatory bail of remaining accused mentioned above are still pending)

In so far as, accused Nos. 155, 163, 164, 165, 166, 170, 171, 172, 178 and 187 are concerned, the benefit granted to them by my learned Predecessor vide order dated 4.9.2019 shall remain admissible to them.

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Warrant of arrest issued against remaining accused named above not received back executed or unexecuted. Execution of warrant of arrest issued against these persons, in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 22.11.2019.

Accused, who are not served with Bailable warrants.

A-144 : Joydeep Dass Gupta

A-145 : Lovekush Sharma

A-148 : Avanish Kumar Tyagi

A-151 : Poonam Madan

(above named accused on bail and represented by Sh. Vishal Gupta, Adv.)

A-152 : Nazima Khan

A-153 : Shabbir Khan

A-156 : Praveen Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)

A-157 : Rajeev Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)

Sh. Sanjeev Jain, Advocate for accused no. A-156 and A-157

An application for exemption from personal appearance of accused no. 151 has been filed on the ground that due to exigency of her duties being senior executive with DLF Ltd. , she could not appear today in court. Heard, taking a lenient view, presence of accused no. 151 exempted for today only.

An application for exemption from personal appearance of accused no. 156 has been filed on the ground that he had to go to Chennai for attending a meeting in company Wheels India, therefore, he was not in position to appear before the court. Heard, taking a lenient view as per medical certificate enclosed with application, presence of accused no. 156 is exempted for today only.

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Bailable warrants of accused No. 152 and 153 remained un-executed. As such, let fresh bailable warrants of other accused who are unserved for today be issued for 22.11.2019.

Accused who are absent.

A/bail	A-116 :	Nitin Rathore with (Sh. Aljo K. Joseph,Adv.) (application pending)
	A-119 :	Vinay Kumpawat
	A-121 :	Paras Bolia (A/bail application pending)
	A-124 :	Neha Gemawat
	A-128 :	Manish Chauhary
	A-129 :	Deepak Shrimali
	A-132 :	Meenakshi Modi
	A-133 :	Prakash Chandra Purohit
	A-136 :	Akshat Singh
	A-139 :	Naveen Kumar
	A-141 :	Aditya Sarda(Sh. Karan K. Gogna & R.K. Mohit Gupta, Adv., appeared on his behalf)
	A-143 :	Sudhir Punia
	A-146 :	Leena Harivyasi (A/bail application pending)
	A-147 :	Vimal Sanwarmal Sharma with (Sh. Vikram Panwar & Sh. Hitesh Kumar) (A/bail application pending)
	A-154 :	Bharat Kumar Mardia (Ms. Suchitra Kumbhat, Adv. appeared on his behalf who is on anticipatory bail as per orders of Hon'ble Punjab and Haryana High Court)
	A-160 :	Shiv Raj Sharma. (A/bail application pending)
	A-162 :	Naveen Choudhary
	A-173 :	Peeyush Aggarwal
	A-174 :	Paramvir Singh Sangwan (A/bail application pending)
	A-175 :	Vijay Jhindal (A/bail application pending)
	A-177 :	Rajiv Kumar Rana

An application for exemption from personal appearance of accused no. 141 has been filed on the ground that the accused was not supplied documents etc. by the Complaint side, in respect of which, application u/s 207 Cr.P.C was pending adjudication, therefore, he was not

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in position to appear before the court. Heard, taking a lenient view as per the contents of application in question, presence of accused no. 141 is exempted for today only. Today the case was also fixed for filing reply to application u/s 207 Cr.P.C dated 3.10.2019 of accused no. 141 by the prosecution. Reply not filed. On the request of prosecution/ complainant, the case is adjourned to 22.11.2019 for filing reply to application dated 3.10.2019 of accused no. 141 for cancellation of warrant of arrest as well as for supply complete documents.

Today the case was fixed for presence of accused No. 154, as the accused was stated to have concession of pre-arrest bail by Hon'ble High Court. Certified copy of order dated 15.10.2019, which has been verified by the Ahlmad of this court, placed on record. At this stage an application for furnishing bonds in pursuance of order dated 15.10.2019 of Hon'ble High Court moved. Heard. The accused is admitted to bail in the sum of Rs. 50,000/- with one surety in the like amount. Accordingly, requisite bonds furnished, accepted and attested. He be released on bail. He to appear on 22.11.2019 for further proceedings.

An application for recall of warrant of arrest against accused no. 175 on 4.9.2019 and 3.10.2019 had been filed by Sh. Nitin Saini, Adv., Reply not filed by the complainant side. On the request of prosecution/ complainant, the case is adjourned to 22.11.2019 for filing reply to application dated 3.10.2019 of accused no. 175 for cancellation of warrant of arrest.

In so far as accused No. 174 is concerned, the interim relief granted to him by my Learned Predecessor, in bail application bearing CNR No. HRGR01-014787-2019 titled Paramvir Vs. SFIO shall remain admissible to him.

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Sh. Akash Singh Jangra, Adv., on behalf of accused no. 177 had on previous date of hearing, moved an application with request to supply copies of complaint with complete documents in order to enable applicant/accused to move appropriate application before this court. Today, the complainant counsel, on the request of learned counsel for accused No. 177, agreed to supply the requisite documents in pen drive on the expenses of accused No. 177.

Warrant of arrest issued against accused no. 147 not received back executed or executed. However, an application for exemption from personal appearance of accused no. 147 filed on the ground that the applicant is suffering from viral fever and severe body ache. The request has been strongly opposed by learned Standing Counsel for SFIO. Heard. Though there is no medical certificate with the application but taking a lenient view in mind the fact that anticipatory bail application is pending before this court for adjudication, his presence is exempted for today only.

Since bail applications of accused No.116, 121, 146, 147, 160, 174 and 175 are pending adjudication before this court, till decision of bail applications, no coercive process shall be initiated against them.

Warrant of arrest issued against remaining accused named above not received back executed or unexecuted. Execution of warrant of arrest issued against remaining above named accused, in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 22.11.2019.

Accused, A-149 : Vijay Shukla (A/bail application pending)

Present : Sh. Gautam Avasthi, Advocate, for the accused, A-149.

Accused, A-149, Vijay Shukla, had approached Hon'ble Supreme Court for relief in Writ Petition (Criminal) No.239/2019 entitled

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“Vijay Shukla Vs. Union of India and others” dated 3.9.2019 but the same has been disposed off on 19.9.2019.

Now fresh bailable warrant, issued in pursuance of order dated 30.7.2019 by my Learned Predecessor, be issued for 22.11.2019.

Accused who are in custody :

A-130	:	Jainam Rathod
A-150	:	Ajit Singh Rathore
A-158	:	Ramlal Arya
A-159	:	Hemant Kumar Jain
A-161	:	Praveen Kumar
A-179	:	Damyanti Bhandari
A-182	:	Nimesh Kumar Ramesh Chandri Soni
A-183	:	Rituraj Singh
A-184	:	Dushyant Singh Rathore
A-185	:	Shashank Shekhar Singh Rathore
A-186	:	Jitesh Kumar Parmar.

Regular bail applications of all the above referred accused have already been dismissed. Accused named above had not been produced by District Jail, Bhondsi, Gurugram today. Let production of above named accused persons be issued in the name of Superintendent, District Jail Bhondsi for 22.11.2019.

Accused No.A-180 : Ichchhita Dungarwal

Present : Accused no. A-180 on bail (not present) with S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels.

An application for exemption from personal appearance of accused no. 180 has been filed on the ground that her two years old minor child is not well since last few days, therefore, she was not in position to appear before the court. Heard, taking a lenient view as per medical certificate enclosed with application, presence of accused no. 180 is exempted for today only. Reply to application for permanent exemption of accused No. 180 be also filed on the date fixed

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A-181 : Neha Kataria

**Present : Accused Neha Kataria on bail with Sh. Hitesh
Kumar, Adv.**

Accused no. A-181 appeared in person. She is directed to appear in the court on 22.11.2019 the date already for further proceedings. Reply to application for permanent exemption of accused No. 181 be also filed on the date fixed.

The attendance sheet of accused is enclosed herewith.

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